DEPARTMENT OF THE INTERIOR

GENERAL LAND OFFICE

Yucca Contract [1]

This contract made this _____ day of _____, 19__, between the United States of America, acting in this behalf by the _____, and _____, of _____, hereinafter called the purchaser, under authority of Executive Order No. 9180 of June 5, 1942.

Witnesseth, That the parties hereto for the considerations hereinafter expressed covenant and agree as follows:

SEC. 1. *Rights granted.* The purchaser shall have the right, for the period of this contract, to search for, cut and remove the species of yucca designated below from the following-described lands: _____

_____

SEC. 2. *Term of contract.* This contract is made for a term of _____ years, or for a period extending until 6 months after the national emergency has been officially declared to be terminated, whichever expires sooner. It may be renewed on its expiration prior to the official termination of the national emergency, in the discretion of the Commissioner of the General Land Office, subject to such provisions and conditions as the Commissioner may prescribe.

SEC. 3. *Special rules.* The following rules will be observed in the cutting: _____

_____

SEC. 4. In consideration of the rights and privileges granted by this contract, the purchaser agrees:

(a) *Charges.* To pay the United States each year in advance a charge of 5 cents per acre for the privilege of cutting yucca from the lands covered by this contract and to make payment to the United States for all such yucca at the following rate: _____

_____

All yucca cut during each 6 months' period of the contract must be paid for within 30 days after the expiration of such period.

(b) *Regulations.* To abide by and conform to any and all reasonable regulations of the Secretary of the Interior now or hereafter in force relating to the cutting and removal of yucca from the public lands, all of which regulations are made a part and condition of this contract: *Provided*, That such future regulations shall not effect any change in the annual acreage charge, or in the charge for the yucca provided for herein, without the consent of the parties hereto.

(c) *Monthly statements.* To furnish monthly statements at such time and in such form as may be required by the Commissioner of the General Land Office, showing the facts as to the yucca cutting operations both from the lands covered by this contract and from lands adjacent thereto, if the purchaser has the right to cut and remove yucca from such adjacent lands.

(d) *Inspection of records.* To keep open at all reasonable times for inspection by any duly authorized officer of the Department of the Interior all books, accounts and other records pertaining to the yucca cutting operations, both from the lands covered by this contract and from lands adjacent thereto, if the purchaser has the right to cut and remove yucca from such adjacent lands.

(e) *Assignments.* Not to assign this contract or any interest therein without the consent of the Commissioner of the General Land Office; that any such assignment, if made, will contain all the terms and conditions agreed upon by the parties thereto; and that the proposed assignment will be forwarded, in triplicate, within 30 days from the date of its execution to the register of the proper district land office for transmittal to the Commissioner.

(f) *Labor policy.* To accord all workmen and employees complete freedom of collective bargaining and of purchase, to pay them at least twice each month in lawful money of the United States, and to carry on all operations hereunder with due regard to their health and safety.

SEC. 5. *Use of land.* This contract will not entitle the purchaser to any right or interest in the land described herein other than for the purpose of searching for, cutting and removing yucca. It will not give the purchaser the right to construct improvements of any kind upon the premises and will not prevent the use of the land by the United States, or under its authority, for any purpose not inconsistent with the rights herein granted. The right is hereby reserved to cut and remove from the land as much yucca as may be necessary for the purposes of research, experimentation or other investigation conducted by the United States, or under its authority.

SEC. 6. *Cancelation of contract.* This contract may be canceled by the Commissioner of the General Land Office if the purchaser shall fail to make any payment required thereunder, or shall fail to comply with any provisions thereof, and such dafault shall continue for 30 days after service of written notice thereof on the purchaser.

SEC. 7. *Termination of contract.* The purchaser, with the consent of the Commissioner of the General Land Office first had and obtained in writing, may surrender and terminate this contract upon payment of all charges due hereunder, upon payment of all wages and moneys due and payable to workmen employed by him, and upon a satisfactory showing to the Commissioner that the public interests will not be impaired.

SEC. 8. *Unlawful interest.* No Member of, or Delegate to Congress, or Resident Commissioner, after his election or appointment, or either before or after he has qualified, and during his continuance in office, and no officer, agent or employee of the Department of the Interior, shall be admitted to any share or part in this contract, or derive any benefit that may arise therefrom. The provisions of section 3741 of the Revised Statutes and sections 114, 115, and 116 of the Criminal Code, approved March 4, 1909 (35 Stat. 1109), relating to contracts, enter into and form a part hereof, so far as the same may be applicable.

SEC. 9. *Heirs and successors in interest.* Each obligation hereunder shall extend to and be binding upon, and every benefit hereof shall inure to, the heirs, executors, administrators, successors, or assigns of the respective parties hereto.

In witness whereof:

THE UNITED STATES OF AMERICA,
By _____
_____
_____
_____
Purchaser.

Witnesses to signature of purchaser:
_____
_____

[F. R. Doc. 42-7748; Filed, August 10, 1942; 10:12 a. m.]

[1] To be executed in quadruplicate.

TITLE 45—PUBLIC WELFARE

[Administrative Order No. 18]

Chapter IV—National Youth Administration

PART 403—STUDENT WORK PROGRAM

Correction

In the table appearing in § 403.3 on page 5719 of the issue for Saturday, July 25, 1942, the boxheads, reading from left to right, should be as follows: "Minimum", "Maximum".

TITLE 46—SHIPPING

Chapter I—Bureau of Customs

[T.D. 50698]

Subchapter A—Documentation, Entrance and Clearance of Vessels, etc.

CANADIAN FISHING VESSELS PERMITTED TO LAND HALIBUT CATCH IN ALASKA

AUGUST 7, 1942.

Section 4311 R.S. (46 U.S.C. 251) waived to extent necessary to permit Canadian halibut fishing vessels to land catch of halibut in Alaska.

Upon the written recommendation of the Secretary of State and by virtue of the authority vested in me by section 501 of the Second War Powers Act, 1942 (Public Law 507, 77th Congress), I hereby waive compliance with the provisions of section 4311 R.S. (46 U.S.C. 251) to the extent necessary, for the duration of the calendar year 1942, to permit Canadian fishing vessels engaging in the North Pacific halibut fishery only to land their catch of halibut in ports of entry in Alaska upon compliance with the applicable customs laws. I deem that such action is necessary in the conduct of the war.

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 42-7718; Filed, August 8, 1942; 11:57 a. m.]

TITLE 46—SHIPPING

Chapter IV—War Shipping Administration

[General Order 11, Supplement 1-A]

PART 302—CONTRACTS WITH VESSEL OWNERS

REQUISITION TIME CHARTER FOR TANK VESSELS

Amendment to clause 3 of § 302.56 [1], *Uniform Time Charter Terms and Conditions for Tank Vessels.*

If at the time of requisition of any tank vessel under the uniform time charter terms and conditions for tank vessels (Warshipoiltime, Form No. 102 [2]) such vessel is equipped with heater coils in good working order and condition for the transportation of dirty products and the coils thereafter become damaged, deteriorated or perforated by reason of the employment of the vessel, pursuant to the direction of the War Shipping Administration, for the transportation of clean petroleum products, Clause 3 of Part II of the terms and conditions of said charter shall be construed to require the War Shipping Administration to restore the heater coils to good working order and condition upon re-delivery of the vessel to the Owner. (E.O. 9054, 7 F.R. 837)

By order of the War Shipping Administrator.

[SEAL] W. C. PEET, JR.,
Secretary.

AUGUST 6, 1942.

[F. R. Doc. 42-7689; Filed, August 7, 1942; 4:18 p. m.]

[1] § 302.56 appears as § 301.1f at 7 F.R. 4588.
[2] 7 F.R. 4588.